

Mohd. Shahid v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 14 March 2023 · WRIT - C No. 6859 of 2023 · **Disposed; fresh order after hearing under Supply Code**

HEADNOTE

Writ against a final assessment for theft of electricity disposed of after the department withdrew the impugned bill and undertook to pass a fresh order after hearing, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Mohd. Shahid, challenged before the Allahabad High Court a final assessment order dated 19 December 2022 issued by the respondent electricity department in a case of theft of electricity. On 28 February 2023 counsel for the department was granted a week to obtain instructions and the writ was directed to be put up as fresh on 14 March 2023. On the adjourned date, department counsel informed the Court that the impugned bill had been withdrawn and that a fresh order would follow after an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::prescribed-procedure

fresh order after hearing in a theft assessment

HOLDING

Where the electricity department withdraws the impugned theft-assessment bill and states that a fresh order will be passed after hearing, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2

PRINCIPLE TAGS

fresh-order-after-hearing-under-supply-code

The Court did not decide the theft assessment. It disposed of the writ on the department's statement that the bill stood withdrawn, leaving a fresh order after hearing to the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF THE FINAL ASSESSMENT DATED 19.12.2022 FOR THEFT OF ELECTRICITY

The impugned bill was withdrawn and the merits were not adjudicated. A fresh order after hearing remains to be passed under the Supply Code procedure. ¶ 2